Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Held in the River Plate Room of the Town Hall on Monday, January 14, 2019 at 8:30 a.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 8:30 a.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no declarations of pecuniary interest.

3. Council / Management Community Action Plan – Planning Workshop

Introduction

Rachael Wraith, Acting Manager of Public and Strategic Affairs, opened the Planning Workshop and provided an overview of the day's agenda and three key outcomes: to understand current organizations conditions, allow Council to share resident feedback and their vision for their term of office, and to initiate the strategic planning process.

Welcome

Mayor Shaun Collier welcomed Council members, staff and the public to the strategic plan session and reviewed key issues and priorities raised during the recent municipal election.

100 Day Organizational Assessment

Shane Baker, Chief Administrative Officer, provided an overview of the contents of his written report and offered his assessment of the organization in his first 100 days as CAO. S. Baker highlighted the strong relationship between Council and staff, high engagement and performance of staff in the completion of the work and duties, and areas of the organization that require study and increased investment in the coming term of office. S. Baker reviewed the recommendations contained within his report with respect to relocation of staff to the Office of the CAO.
Council members asked questions regarding restoring ISO certification for the Town, financial implications of future studies and master plan development, and internal hiring practices. S. Baker responded to questions from members of Council.

Moved by: S. Lee
Seconded by: J. Dies

That Council receive this report for information.

That the Diversity portfolio, including the position of *Diversity and Community Engagement Coordinator* be relocated to the Office of the CAO from the Recreation, Culture & Community Development Department, effective immediately.

That the Quality Systems and Customer Service portfolios, including the position of *Quality System & Customer Service Coordinator* be relocated to the Office of the CAO from the Legislative & Information Services Department, effective immediately.

That the current Quality System & Customer Service Coordinator's title be changed to Manager of Quality, Customer Service & Special Projects, effective immediately.

CARRIED

Council recessed at 10:00 a.m.

Council resumed the meeting at 10:15 a.m.

Strategic Plan Overview

Rachael Wraith, Acting Manager of Public and Strategic Affairs, provided an overview on the strategic plan process and discussed the purpose of strategic planning, past examples from previous terms of Council, and the difference between a strategic plan and the Town's current Community Action Plan.

Council members asked questions regarding outstanding action items from the previous term's plan, and public consultation on the plan. R. Wraith responded to questions from members of Council.

Council Roundtable

Mayor Collier introduced and welcomed The Honourable Rod Philips, Minister of the Environment, Conservation and Parks and MPP (Ajax), and Dev Ramkallie from the office of The Honourable Mark Holland, MP (Ajax). Mayor Collier noted that the roundtable presented an opportunity for all members to discuss issues heard during the 2018 municipal election, and to state their priorities for the coming term of office.

Among other matters, Council Members highlighted increasing traffic calming measures, examining fees for recreational services, community safety and communication with Durham Regional Police Service, economic development and job growth, on-street parking and by-law enforcement, maintenance and beautification of parks, boulevards, and the Town's waterfront, fiscal responsibility, intensification and infill development, enhancing partnerships with community organizations, improving regional transit, addressing affordable housing, protecting the Town's environmental assets, increasing sources of non-tax revenue, expanding the number of Town events, and introducing a tech hub incubator to Ajax.

Mayor Collier welcomed John Henry, Regional Chair, Region of Durham, to the meeting and invited guests to comment on the priorities shared by Members of Council. The Honourable Rod Philips, Minister of the Environment, Conservation and Parks and MPP (Ajax), congratulated all winners of the 2018 municipal election and noted the strong relationship Ajax has with the provincial government and that the province will remain a partner with Ajax on key issues identified by Council. John Henry, Regional Chair, Region of Durham, noted that all of Durham must work together to be heard by the provincial and federal governments, and noted that transit remains a critical issue in Ajax and across Durham. Chair Henry committed to working with Ajax to help achieve Council's vision. Dev Ramkallie spoke on behalf of The Honourable Mark Holland, MP (Ajax), and noted that Mr. Holland looks forward to working with Ajax Council throughout the coming term of office. Mayor Collier thanked all guests for their comments.

Council recessed 11:36 a.m.

Council resumed the meeting at 12:47 p.m.

Department Considerations / Pressures

Department Heads provided a synopsis of important considerations and pressures within their respective areas.

Legislative & Information Services

Nicole Cooper, Director of Legislative and Information Services/Town Clerk, discussed the need for a new Information Technology strategy, modernization of the advisory committee structure for the coming term of office, review of service levels for By-law and Animal Services, and potentially increasing proactive by-law enforcement.

Council members asked questions regarding costs associated with external review of the Town's Information Technology portfolio, service levels and employment for By-law Services, and proactive enforcement of by-laws. N. Cooper responded to questions from members of Council.

Fire Services

Dave Lang, Fire Chief, reviewed Town growth over the last decade, increased mandatory health and safety requirements as a result of legislative changes, current staffing levels, the Fire Underwriter's Survey, and next steps in the development of an updated Fire Master Plan.

Council members asked questions regarding staffing levels, mutual aid agreements with neighbouring municipalities, health and safety needs of staff, impact on residential insurance rates, and the possibility of a regionalized fire service. D. Lang responded to questions from members of Council.

Planning & Development Services

Dave Meredith, Acting Director, Planning and Development Services, discussed downtown redevelopment, economic growth and job creation, stormwater management, the development approval process, external implications, the Durham Comprehensive Review, potential development on the Carruthers Headwater, the Phosphorus Reduction Action Plan (PRAP) study, Bill 66 – Restoring Ontario's Competitiveness Act, and traffic management and safety.

Members of Council asked questions regarding a comprehensive report on economic development, extension of Hunt Street, traffic calming measures, foreign direct investment opportunities, and future widening of Highway 401. D. Meredith responded to questions from members of Council.

Recreation, Culture & Community Development

Tracey Vaughan, Director, Recreation, Culture & Community Development, reviewed pressures including aging infrastructure, facility upgrades, seniors programming, diversity initiatives, affordable access for underserved populations, and increased expectations from residents. T. Vaughan also discussed considerations such as a new Recreation and Culture Master Plan, need for an additional pool and/or therapeutic pool, a Town-operated seniors centre, and community safety.

Members of Council asked questions regarding the Mill Street Fire Hall, development of a community safety plan, competition with private fitness facilities, development of an age-friendly strategy, and program affordability. T. Vaughan responded to questions from members of Council.

Operations & Environmental Services

Catherine Bridgeman, Acting Director, Operations and Environmental Services, discussed current staffing resources, increasing legislative requirements, new infrastructure, implementation of an asset management plan, proposed levels of service, and capital projects scheduled for 2019.

Members of Council asked questions regarding work on Church Street in 2019, potential to implement paid parking lots as part of the Downtown redevelopment. C. Bridgeman responded to questions from members of Council.

Finance & Budget

Sheila Strain, Director of Finance/Treasurer, provided an overview of the Town's fiscal landscape and discussed financial pressures, declining tax rate increases, declining assessment growth, strategies to achieve lower tax rate increases, funding impacts to reserves, development charges, the asset management plan, and other fiscal challenges.

Members of Council asked questions regarding impacts to casino revenues from Durham Live, costs associated with capital projects, and development of the asset management plan. S. Strain responded to questions from members of Council.

2019-2022 Strategic Plan Process

Rachael Wraith, Acting Manager of Public and Strategic Affairs, reviewed key deliverables and next steps in the strategic plan process and provided an overview of the engagement campaign.

Wrap-up

Shane Baker, Chief Administrative Officer, reviewed the goals of the day's session and next steps in the process. Mayor Collier thanked all members of Council, staff and the public for participating in the strategic plan workshop,

Council recessed at 3:35 p.m.

Council resumed the meeting 3:43 p.m.

Cannabis in Ajax

Rachael Matheson, Senior Communications Officer – Government Relations, reviewed the contents and recommendations of the written report and discussed recent decisions to opt in or out by other area municipalities. R. Matheson reviewed the lottery process conducted by the province and noted that only six locations would be available in the GTA area, which includes Durham Region.

Council members discussed the results of the public consultation process and the recommendations within the report.

Moved by: A. Khan
Seconded by: R. Tyler Morin

That staff be directed to inform the Alcohol and Gaming Commission of Ontario that the Town "opts in" and will allow retail cannabis storefronts to operate within Ajax; and

That the Cannabis Policy Statement, included as ATT-1 to this report, be endorsed by Council, and that staff be delegated authority to comment to the Alcohol and Gaming Commission of Ontario, on behalf of Council, with respect to any store license application that does not meet the public interest of the Town of Ajax based on the Town's Cannabis Policy Statement; and

That staff be directed to report back to Council prior to April 1, 2019 outlining considerations and recommendations addressing additional bylaw restrictions on places of use for cannabis consumption, building on the Smoke Free Ontario Act and Region of Durham's forthcoming updated Smoking Bylaw; and

That Council support requesting the province to include not only schools but also daycares and other sensitive uses as appropriate within the 150 m buffer from cannabis retail locations.

CARRIED

Recorded Vote

In Favour: Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin, Mayor Collier

Opposed: None

Bill 66 - Restoring Ontario's Competitiveness Act, 2018

Sean McCullough, Senior Planner, provided a presentation and reviewed the contents and recommendations of the written report. S. McCullough discussed the Ontario Planning Framework, the proposed Open for Business planning by-law and how it would operate, and staff's recommendations for comments to the province on the proposed legislation.

Members asked questions regarding where an 'Open for Business' by-law may be used, existing planning tools to expedite development applications, optional public consultations where such a by-law is considered, and the proposed provincial approval process. Members discussed the merits of the proposed legislation in the context of existing provincial regulations governing land use in protected areas.

Amendment

Moved by: J. Dies
Seconded by: S. Lee

That recommendation 1 contained within the report be amended to read as follows:

1. **That, subject to the deletion of schedule 10,** Council supports, in principle, the use of Bill 66, *Restoring Ontario's Competitiveness Act, 2018* to attract new major employment uses and investment in Ajax with the provision that the Town passes Open for Business Planning By-laws that respect its commitment to the Greenbelt, water quality, and Town land use and environmental policies and plans.

MOTION LOST

Recorded Vote

In Favour: Regional Councillor Dies, Regional Councillor Lee

Opposed: Councillor Bower, Regional Councillor Crawford, Councillor Khan, Councillor Tyler Morin, Mayor Collier.

Main Motion

Moved by: A. Khan
Seconded by: R. Tyler Morin

1. That Council supports, in principle, the use of Bill 66, *Restoring Ontario's Competitiveness Act, 2018* to attract new major employment uses and investment in Ajax with the provision that the Town passes Open for Business Planning By-laws that respect its commitment to the Greenbelt, water quality, and Town land use and environmental policies and plans.

2. That the following staff comments be submitted to the Ministry of Economic Development, Job Creation and Trade regarding Schedule 10 (amendments to the *Planning Act*) in Bill 66, *Restoring Ontario's Competitiveness Act, 2018* (EBR Registry No. 013-4293):

   a) Town staff recommend that development approved under an Open for Business Planning By-law should conform to:
      i. Provincial plans, policies and legislation; and
      ii. Municipal Official Plans.

   b) Town staff recommend that municipalities continue to have the ability to impose the site plan and architectural control conditions under Section 41 of the *Planning Act* they deem appropriate for new employment uses approved under an Open for Business Planning By-law.

   c) Town staff recommend that public consultation be required prior to Council passing an Open for Business Planning By-law to ensure the public is given the opportunity to help identify opportunities and constraints on major developments within their community.

   d) Town staff recommend that the proposed Section 34.1(18) in Schedule 10 of Bill 66 be amended to clarify that all sections of the *Planning Act* apply when amendments or future business expansions to a development approval made under an Open for Business Planning By-law are requested.

3. That the following staff comments be submitted to the Ministry of Municipal Affairs and Housing regarding the proposed Open for Business Planning Tool (EBR Registry Nos. 013-4125 and 013-4239):

   a) Town staff do not support using an Open for Business Planning By-law to convert employment lands within urban areas or introduce sensitive land-uses into employment areas that may be incompatible. Town staff recommend that the Province clarify, in the *Planning Act,* what secondary or ancillary uses may be permitted in an Open for Business Planning By-law, based on the underlying Official Plan land use designation; the scale of those secondary or ancillary uses; and the criteria to be satisfied for permitting those secondary or ancillary uses.

   b) Town staff recommend that the Regulation under the *Planning Act* for the Open for Business Planning Tool require new major employment uses to provide a minimum job density target of 50 jobs per net hectare.

   c) Town staff recommend that the proposed Section 34.1(18) in Schedule 10 of Bill 66 be amended to clarify that all sections of the *Planning Act* apply when amendments or future business expansions to a development approval made under an Open for Business Planning By-law are requested.

4. That this Report and a copy of Council's resolution be forwarded to the Ministry of Economic Development, Job Creation and Trade and the Ministry of Municipal Affairs and Housing in advance of the January 20, 2019 comment deadline.

5. That a copy of this report be distributed to the Region of Durham, Toronto and Region Conservation Authority, Central Lake Ontario Conservation Authority, CTC Source Protection Region, Ontario Greenbelt Alliance, Environmental Defense, and Canadian Environmental Law Association.

CARRIED

Closed Session (4:30 p.m.)

Authority to Hold a Closed Session

Moved by: A. Khan
Seconded by: L. Bower

That the Council convene to a Closed Session pursuant to Section 239 (2) (f) of the Municipal Act, 2001, as amended, to discuss a matter of advice subject to solicitor-client privilege, including communications necessary for that purpose

CARRIED

Lemine – Ongoing Legal Matters

Open Meeting (5:22 p.m.)

Ratify Actions Taken In Closed Session

Moved by: L. Bower
Seconded by: A. Khan

That all direction approved in the Closed Session be ratified.

CARRIED

4. Confirming By-Law

Moved by: L. Bower
Seconded by: A. Khan

That By-law number 1-2019 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on January 14, 2019 be read a first, second and third time and passed.

CARRIED

5. Adjournment

Moved by: M. Crawford
Seconded by: A. Khan

That the January 14, 2019 meeting of the Council of the Town of Ajax be adjourned. (5:27 p.m.)

CARRIED

Mayor

D-Clerk